

INCYTE CORP. et al v. MSN PHARMACEUTICALS INC. et al

Plaintiff:	INCYTE CORP. and INCYTE HOLDINGS CORP.
Defendant:	MSN PHARMACEUTICALS INC. and MSN LABORATORIES PVT. LTD.
Case Number:	1:2026cv07949
Filed:	June 30, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Christine P O'Hearn
Referring Judge:	Matthew J Skahill
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Date Filed	Document Text
July 14, 2026	Filing 8 WAIVER OF SERVICE Returned Executed by INCYTE CORP., INCYTE HOLDINGS CORP.. MSN LABORATORIES PVT. LTD. waiver sent on 7/13/2026, answer due 10/13/2026. (LIZZA, CHARLES)
July 14, 2026	Filing 7 WAIVER OF SERVICE Returned Executed by INCYTE HOLDINGS CORP., INCYTE CORP.. MSN PHARMACEUTICALS INC. waiver sent on 7/13/2026, answer due 10/13/2026. (LIZZA, CHARLES)
July 7, 2026	Filing 6 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (CALLO, ALEXANDER)
July 7, 2026	Filing 5 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (SULLIVAN, SARAH)
July 2, 2026	Filing 4 SUMMONS ISSUED as to MSN LABORATORIES PVT. LTD., MSN PHARMACEUTICALS INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (dnw)

Date Filed	Document Text
July 2, 2026	Filing 3 AO120 Patent/Trademark Form filed. (Attachments: #1 See Complaint, #2 Civil Cover Sheet) (dnw)
June 30, 2026	Filing 2 Corporate Disclosure Statement by INCYTE CORP., INCYTE HOLDINGS CORP.. (LIZZA, CHARLES)
June 30, 2026	Filing 1 COMPLAINT against MSN LABORATORIES PVT. LTD., MSN PHARMACEUTICALS INC. (Filing and Admin fee \$ 405 receipt number ANJDC-17600512) , Related Case Selected, filed by INCYTE CORP., INCYTE HOLDINGS CORP.. (Attachments: #1 Civil Cover Sheet)(LIZZA, CHARLES)
June 30, 2026	Judge Christine P. O'Hearn and Magistrate Judge Matthew J. Skahill added. (mmb)

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UNITED STATES DISTRICT COURT

DISTRICT OF NEW JERSEY

INCYTE CORP. and INCYTE

HOLDINGS CORP.,

Plaintiffs,

v.

MSN PHARMACEUTICALS INC. and

MSN LABORATORIES PVT. LTD.,

Defendants.

Plaintiffs Incyte Corporation and Incyte Holdings Corporation (together, “Incyte”), by their undersigned attorneys, for their Complaint against Defendants MSN Pharmaceuticals Inc. (“MSN Pharma”) and MSN Laboratories Private Limited (“MSN Labs”) (collectively “MSN” or “Defendants”) allege as follows:

Nature of the Action

1.

This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100, et seq., arising from MSN’s submission of Abbreviated New Drug Application (“ANDA”) No. 221086 (“MSN’s ANDA”) to the United States Food and Drug Administration

("FDA") seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic

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Civil Action No.

COMPLAINT FOR

PATENT INFRINGEMENT

(Filed Electronically)

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version of Incyte's Jakafi® (ruxolitinib) drug products, 5 mg, 10 mg, 15 mg, 20 mg, and 25 mg tablets,

prior to the expiration of United States Patent Nos. 7,598,257 (the "'257 patent"); 8,415,362 (the "'362

patent"); 8,722,693 (the "'693 patent"); 8,822,481 (the "'481 patent"); 8,829,013 (the "'013 patent");

and 10,016,429 (the "'429 patent") (collectively, the "patents-in-suit"). The patents-in-suit are owned

by Incyte Corporation and/or Incyte Holdings Corporation.

The Parties

2.

Plaintiff Incyte Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

3.

Plaintiff Incyte Holdings Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

4.

On information and belief, Defendant MSN Labs is a corporation organized and existing under the laws of the Republic of India, with a principal place of business at MSN House, Plot No: C-24, Industrial Estate, Sanath Nagar, Hyderabad, Telangana, 500018 India.

5.

On information and belief, Defendant MSN Pharma is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 20 Duke Road,

Piscataway, New Jersey 08854.

6.

Upon information and belief, MSN Pharma is a wholly-owned subsidiary of MSN Labs.

7.

Upon information and belief, MSN Pharma and MSN Labs collaborate with respect to the development, regulatory approval, marketing, sale, and/or distribution of pharmaceutical products. Upon further information and belief, MSN Pharma and MSN Labs are agents of each other

and/or operate in concert as integrated parts of the same business group.

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The Patents-in-Suit

8.

On October 6, 2009, the United States Patent and Trademark Office ("USPTO") duly and lawfully issued the '257 patent, entitled, "Heteroaryl substituted pyrrolo[2,3-b]pyridines and

pyrrolo[2,3-b]pyrimidines as Janus kinase inhibitors.” A copy of the ’257 patent is attached hereto as Exhibit A.

9.

On April 9, 2013, the USPTO duly and lawfully issued the ’362 patent, entitled, “Pyrazolyl substituted pyrrolo[2,3-b]pyrimidines as Janus kinase inhibitors.” A copy of the ’362 patent is attached hereto as Exhibit B.

10.

On May 13, 2014, the United States Patent and Trademark Office (“USPTO”) duly and lawfully issued the ’693 patent, entitled, “Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’693 patent is attached hereto as Exhibit C.

11.

On September 2, 2014, the USPTO duly and lawfully issued the ’481 patent, entitled, “Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d] pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’481 patent is attached hereto as Exhibit D.

12.

On September 9, 2014, the USPTO duly and lawfully issued the ’013 patent, entitled, “Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’013 patent is attached hereto as Exhibit E.

13.

On July 10, 2018, the USPTO duly and lawfully issued the ’429 patent, entitled, “Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-D]pyrimidin-4-yl)-1H- pyrazol-1-yl)-3-cyclopentylpropanenitrile.” A copy of the ’429 patent is attached hereto as Exhibit F.

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The Jakafi® Drug Products

14.

Incyte Corporation holds an approved New Drug Application (“NDA”) under Section 505(a) of the Federal Food Drug and Cosmetic Act (“FFDCA”), 21 U.S.C. § 355(a) for Jakafi® (ruxolitinib) (NDA No. 202192).

15.

Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the patents-in-suit are listed in the FDA publication entitled “Approved Drug Products with Therapeutic Equivalence Evaluations” (the “Orange Book”), with respect to Jakafi®.

16.

The FDA-approved prescribing information for Jakafi® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Jakafi® according to one or more of the methods claimed in the patents-in-suit.

Jurisdiction and Venue

17.

This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

18.

This Court has personal jurisdiction over MSN Labs pursuant to Federal Rule of Civil Procedure 4(k)(2), including because: (a) Incyte’s claims arise under federal law; (b) MSN Labs is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and

(c) MSN Labs has sufficient contacts with the United States as a whole, including, without limitation,

preparing and submitting ANDAs to the FDA and/or manufacturing, importing, offering to sell, and/or selling pharmaceutical products that are distributed throughout the United States, such that this Court's exercise of jurisdiction over MSN Labs satisfies due process.

19.

This Court has personal jurisdiction over MSN Pharma by virtue of, inter alia, its systematic and continuous contacts with the State of New Jersey.

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20.

On information and belief, MSN purposefully has conducted and continues to conduct business in this Judicial District.

21.

On information and belief, MSN is in the business of, among other things, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District.

22.

On information and belief, MSN submitted ANDA No. 221086 seeking FDA approval to engage in the manufacture, use, importation, distribution, offer to sell, and/or sale of the generic drug products that are the subject of MSN's ANDA ("MSN's Proposed Products"), throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the patents-in-suit.

23.

On information and belief, this Judicial District is a likely destination for MSN's Proposed Products.

24.

On information and belief, MSN intends to benefit directly if its ANDA is approved by participating in the manufacture, importation, distribution, and/or sale of MSN's Proposed Products.

25.

On information and belief, MSN Pharma maintains a regular and established physical place of business at 20 Duke Road, Piscataway, New Jersey 08854.

26.

On information and belief, MSN Pharma is registered with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID No. 0400627791 and is registered with the New Jersey Department of Health under Registration No. 5006107.

27.

MSN has purposefully availed itself of the rights, benefits, and privileges of New Jersey, including by asserting counterclaims in this Court. See, e.g., *Alkermes, Inc. et al. v. MSN*

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Pharmaceuticals Inc. et al., No. 1:25-cv-15324 (D.N.J); *Supernus Pharmaceuticals, Inc. v. MSN Pharmaceuticals Inc.*, No. 2:25-cv-13204 (D.N.J); *Vifor (International) AG et al. v. MSN Laboratories Private Limited et al.*, No. 3:25-cv-03286 (D.N.J); *Bausch Health Ireland Limited et al.*

v. MSN Laboratories Private Limited et al., No. 2:24-cv-11179 (D.N.J); *American Regent, Inc. f/k/a Luitpold Pharmaceuticals, Inc. v. MSN Laboratories Private Limited et al.*, No. 3:24-cv-10674 (D.N.J); *Esperion Therapeutics, Inc. v. MSN Pharmaceuticals Inc. et al.*, No. 2:24-cv-06386 (D.N.J);

AbbVie Inc. et al. v. MSN Pharmaceuticals Inc. et al., No. 3:24-cv-04662 (D.N.J).

28.

For at least the foregoing reasons, venue is proper in this Judicial District for MSN

Pharma pursuant to 28 U.S.C. §§ 1391 and/or 1400(b).

29.

For at least the foregoing reasons, venue is proper in this Judicial District for MSN Labs pursuant to 28 U.S.C. §§ 1391 and/or 1400(b), including, for example, because MSN Labs is a company organized and existing under the laws of India and may be sued in any judicial district.

Acts Giving Rise To This Suit

30.

Pursuant to Section 505 of the FFDCA, MSN submitted ANDA No. 221086 seeking approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of MSN's Proposed Products, which are proposed generic versions of Incyte's approved Jakafi® products, before the patents-in-suit expire.

31.

On information and belief, following FDA approval of MSN's ANDA, MSN will make, use, sell, or offer to sell MSN's Proposed Products throughout the United States, and/or import such generic products into the United States.

32.

On information and belief, following FDA approval of MSN's ANDA, MSN's Proposed Products will include prescribing information, similar to that for Jakafi®, that instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer MSN's

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Proposed Products according to one or more of the methods claimed in the patents-in-suit.

33.

On information and belief, in connection with the submission of ANDA No. 221086 as described above, MSN provided written certifications to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("MSN's Paragraph IV Certifications"), alleging that the claims of the patents-in-suit are invalid and/or will not be infringed by the activities described in MSN's ANDA.

34.

MSN subsequently sent to Incyte written notice of MSN's Paragraph IV Certifications for the patents-in-suit, alleging that the claims of those patents are invalid and/or will not be infringed by the activities described in MSN's ANDA. MSN's written notice to Incyte conveyed that MSN seeks approval to market MSN's Proposed Products before the patents-in-suit expire.

Count I: Infringement of the '257 Patent

35.

set forth herein.

36.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully MSN's submission of ANDA No. 221086, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of MSN's Proposed Products prior to the expiration of the '257 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C.

§ 271(e)(2)(A).

37.

There is a justiciable controversy between the parties hereto as to the infringement of the '257 patent.

38.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will infringe one or more claims of the '257 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States.

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39.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will induce infringement of one or more claims of the '257 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, upon FDA approval of MSN's ANDA, MSN will intentionally encourage acts

of direct infringement with knowledge of the '257 patent and knowledge that its acts are encouraging infringement.

40.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will contributorily infringe one or more claims of the '257 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, MSN has had and continues to have knowledge that MSN's Proposed Products are especially adapted for a use that infringes one or more claims of the '257 patent and that

there is no substantial non-infringing use for MSN's Proposed Products.

41.

Incyte will be substantially and irreparably damaged and harmed if MSN's infringement of the '257 patent is not enjoined.

42.

Incyte does not have an adequate remedy at law.

43.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count II: Infringement of the '362 Patent

44.

set forth herein.

45.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully MSN's submission of ANDA No. 221086, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of MSN's Proposed Products prior to the expiration

of the '362 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C.

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§ 271(e)(2)(A).

46.

There is a justiciable controversy between the parties hereto as to the infringement of the '362 patent.

47.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will infringe one or more claims of the '362 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States.

48.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will induce infringement of one or more claims of the '362 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, upon FDA approval of MSN's ANDA, MSN will intentionally encourage acts

of direct infringement with knowledge of the '362 patent and knowledge that its acts are encouraging infringement.

49.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will contributorily infringe one or more claims of the '362 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, MSN has had and continues to have knowledge that MSN's Proposed Products are especially adapted for a use that infringes one or more claims of the '362 patent and that

there is no substantial non-infringing use for MSN's Proposed Products.

50.

Incyte will be substantially and irreparably damaged and harmed if MSN's infringement of the '362 patent is not enjoined.

51.

Incyte does not have an adequate remedy at law.

52.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

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Count III: Infringement of the '693 Patent

53.

set forth herein.

54.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully MSN's submission of ANDA No. 221086, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of MSN's Proposed Products prior to the expiration

of the '693 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C.

§ 271(e)(2)(A).

55.

There is a justiciable controversy between the parties hereto as to the infringement of the '693 patent.

56.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will infringe one or more claims of the '693 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States.

57.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will induce infringement of one or more claims of the '693 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, upon FDA approval of MSN's ANDA, MSN will intentionally encourage acts

of direct infringement with knowledge of the '693 patent and knowledge that its acts are encouraging infringement.

58.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will contributorily infringe one or more claims of the '693 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, MSN has had and continues to have knowledge that MSN's Proposed Products are especially adapted for a use that infringes one or more claims of the '693 patent and that there is no substantial non-infringing use for MSN's Proposed Products.

59.

Incyte will be substantially and irreparably damaged and harmed if MSN's infringement of the '693 patent is not enjoined.

60.

Incyte does not have an adequate remedy at law.

61.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count IV: Infringement of the '481 Patent

62.

set forth herein.

63.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully MSN's submission of ANDA No. 221086, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of MSN's Proposed Products prior to the expiration

of the '481 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C.

§ 271(e)(2)(A).

64.

There is a justiciable controversy between the parties hereto as to the infringement of the '481 patent.

65.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will infringe one or more claims of the '481 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States.

66.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will induce infringement of one or more claims of the '481 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, upon FDA approval of MSN's ANDA, MSN will intentionally encourage acts

of direct infringement with knowledge of the '481 patent and knowledge that its acts are encouraging

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infringement.

67.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will contributorily infringe one or more claims of the '481 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On

information and belief, MSN has had and continues to have knowledge that MSN's Proposed Products are especially adapted for a use that infringes one or more claims of the '481 patent and that

there is no substantial non-infringing use for MSN's Proposed Products.

68.

Incyte will be substantially and irreparably damaged and harmed if MSN's infringement of the '481 patent is not enjoined.

69.

Incyte does not have an adequate remedy at law.

70.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count V: Infringement of the '013 Patent

71.

set forth herein.

72.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully MSN's submission of ANDA No. 221086, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of MSN's Proposed Products prior to the expiration

of the '013 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C.

§ 271(e)(2)(A).

73.

There is a justiciable controversy between the parties hereto as to the infringement of the '013 patent.

74.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will infringe one or more claims of the '013 patent under 35 U.S.C. § 271(a) by making, using, offering

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to sell, selling, and/or importing MSN's Proposed Products in the United States.

75.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will induce infringement of one or more claims of the '013 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, upon FDA approval of MSN's ANDA, MSN will intentionally encourage acts

of direct infringement with knowledge of the '013 patent and knowledge that its acts are encouraging infringement.

76.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will contributorily infringe one or more claims of the '013 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, MSN has had and continues to have knowledge that MSN's Proposed Products are especially adapted for a use that infringes one or more claims of the '013 patent and that

there is no substantial non-infringing use for MSN's Proposed Products.

77.

Incyte will be substantially and irreparably damaged and harmed if MSN's

infringement of the '013 patent is not enjoined.

78.

Incyte does not have an adequate remedy at law.

79.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count VI: Infringement of the '429 Patent

80.

set forth herein.

81.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully MSN's submission of ANDA No. 221086, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of MSN's Proposed Products prior to the expiration

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of the '429 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C.

§ 271(e)(2)(A).

82.

There is a justiciable controversy between the parties hereto as to the infringement of the '429 patent.

83.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will infringe one or more claims of the '429 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States.

84.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will induce infringement of one or more claims of the '429 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, upon FDA approval of MSN's ANDA, MSN will intentionally encourage acts

of direct infringement with knowledge of the '429 patent and knowledge that its acts are encouraging infringement.

85.

Unless enjoined by this Court, upon FDA approval of MSN's ANDA, MSN will contributorily infringe one or more claims of the '429 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing MSN's Proposed Products in the United States. On information and belief, MSN has had and continues to have knowledge that MSN's Proposed Products are especially adapted for a use that infringes one or more claims of the '429 patent and that

there is no substantial non-infringing use for MSN's Proposed Products.

86.

Incyte will be substantially and irreparably damaged and harmed if MSN's infringement of the '429 patent is not enjoined.

87.

Incyte does not have an adequate remedy at law.

88.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

WHEREFORE, Incyte respectfully request the following relief:

(A)

A Judgment that MSN has infringed the patents-in-suit by submitting ANDA No. 221086 with the accompanying Paragraph IV Certifications and notice to Incyte of same;

(B)

A Judgment that MSN has infringed, and that MSN's making, using, selling, offering to sell, and/or importing MSN's Proposed Products will infringe, one or more claims of the patents-in-suit;

(C) An Order that, pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of FDA approval of ANDA No. 221086 be a date which is not earlier than the later of the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(D) Preliminary and permanent injunctions enjoining MSN and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from making, using, offering to sell, selling, and/or importing MSN's Proposed Products until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(E)

A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining MSN, its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from practicing any of the subject matter claimed in the patents-in-suit, or from actively inducing or contributing to the infringement of any claim of the patents-in-suit, until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(F)

A Judgment that the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of MSN's Proposed Products will directly infringe, induce infringement of, and/or contribute to infringement of the patents-in-suit;

(G)

To the extent that MSN, its officers, agents, attorneys, and/or employees, or those

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acting in privity and/or concert with them, has committed any acts with respect to the subject matter claimed in the patents-in-suit, other than those acts expressly exempted by 35

U.S.C. § 271(e)(1), a Judgment awarding Incyte damages for such acts;

(H)

If MSN, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, engages in the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of MSN's Proposed Products prior to the expiration of the patents-

in-suit, a Judgment awarding damages to Incyte resulting from such infringement, together with interest;

(I)

(J)

A Judgment declaring that the patents-in-suit remain valid and enforceable;

A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Incyte its attorneys' fees incurred in this action;

(K)

A Judgment awarding Incyte its costs and expenses incurred in this action; and

(L)

Such further and other relief as this Court may deem just and proper.

Dated: June 30, 2026

By: s/ Charles M. Lizza

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Attorneys for Plaintiffs Incyte Corporation and

Incyte Holdings Corporation

Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify, to the best of my knowledge, that this matter is related to Incyte Corp., et al. v. Apotex Inc., No. 24-4366 (CPO)(MJS) (D.N.J.) (consolidated), Incyte Corp., et al. v. Hikma Pharms. USA Inc., No. 25-1859 (CPO)(MJS) (D.N.J.), Incyte Corp., et al. v. Sun Pharmaceutical Industries, Inc., et al, No. 25-13225 (CPO)(MJS) (D.N.J.),

Incyte Corp., et al. v. Granules India Ltd., No. 25-13227 (CPO)(MJS) (D.N.J.), Incyte Corp., et al. v.

Eugia Pharma Specialities Limited, et al., No. 25-17833 (CPO)(MJS), Incyte Corp., et al. v. Dr. Reddy's Laboratories, Inc., et al., No. 25-17832 (CPO)(MJS), Incyte Corp., et al. v. Alkem Laboratories, et al., No. 26-2338 (CPO)(MJS), and Incyte Corp., et al. v. Alembic Pharmaceuticals Limited, et al., No. 26-7841 (CPO)(MJS) because each of the foregoing cases involves or involved the same Plaintiffs and overlapping patents-in-suit, and because Defendants are seeking FDA approval

to sell a generic version of the same drug product.

I further certify, to the best of my knowledge, that the matter in controversy is not the subject of any other action pending in any court, or of any pending arbitration or administrative proceeding.

Dated: June 30, 2026

By: s/ Charles M. Lizza

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